

25SMCV05471 25SMCV05471

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-24

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Case Number: 25SMCV05471 Hearing Date: September 24, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

September 24, 2026

CASE NUMBER

25SMCV05471

MOTIONS

Motion for Leave to File a Cross-Complaint

MOVING PARTY

Defendant City of Santa Monica

OPPOSING PARTY

none

MOTION

On October 21, 2025, Plaintiff Javohir Abdusattarov ("Plaintiff") brought suit against Defendants City of Santa Monica ("City"); County of Los Angeles ("County"); and Damon White ("White") alleging two causes of action for (1) motor vehicle negligence and (2) general negligence.

City and County answered the Complaint on March 24, 2026. City now moves for leave to file a cross-complaint. The motion is unopposed.

LEGAL STANDARD

A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following:

(a) Any cause of action he has against any of the parties who filed the complaint or cross-complaint against him. Nothing in this subdivision authorizes the filing of a cross-complaint against the plaintiff in an action commenced under Title 7 (commencing with Section 1230.010) of Part 3.

(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.

(Code
Civ. Proc., § 428.10, subds. (a)-(b).)

(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any

other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A

party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

(Code

Civ. Proc., § 428.50, subds. (a)-(c).)

“Cross-complaints for comparative equitable indemnity would appear virtually always transactionally related to the main action.” (Time for Living, Inc. v. Guy Hatfield Homes (1991) 230 Cal.App.3d 30, 38; see also Countrywide Home Loans, Inc. v. Superior Court (1999) 69 Cal.App.4th 785, 799 [“Undoubtedly, a claim for contribution or indemnity ‘arises out of’ the same transaction or occurrence as the plaintiff’s claim”].)

Indeed, where a cause of action would otherwise be lost, leave to amend is appropriate even if the party was negligent in not moving for leave to amend earlier. “The legislative mandate is clear. A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result.” (Silver Organizations, Ltd. v. Frank (1990) 217 Cal.App.3d 94, 98-99.)

DISCUSSION

City seeks leave to file a cross-complaint against Plaintiff to assert a compulsory negligence claim arising from the same motor vehicle collision alleged in Plaintiff’s Complaint. Thus, because City’s claims are against Plaintiff, the cross-complaint is generally proper. Further, because the cross-claim is compulsory, it would be lost if leave is denied.

CONCLUSION

AND ORDER

Adhering to the liberal policy of granting leave to avoid forfeiture of claims, the Court grants City's unopposed motion for leave to file the cross-complaint against Plaintiff.

Further, the Court orders City to file and serve the Cross-Complaint attached to the Motion on or before October 9, 2026.

Further, the Court will enter the proposed Order lodged on August 28, 2026 in conformity with the ruling.

City shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED:

September 24, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court